

HAVENTECH, LLC

EMPLOYEE HANDBOOK

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DISCLAIMER

THIS HANDBOOK PROVIDES GENERAL GUIDELINES FOR EMPLOYEES OF HAVENTECH, LLC. THIS HANDBOOK IS NOT AND SHOULD NOT BE INTERPRETED AS A CONTRACT OF EMPLOYMENT FOR ANY SPECIFIC PERIOD OF TIME, AND ALL EMPLOYEES OF HAVENTECH ARE EMPLOYED AT WILL UNLESS THERE IS A WRITTEN CONTRACT SIGNED BY A SENIOR PRINCIPAL OF TJM HOLDINGS, LLC ("TJM") OR HAVENTECH. QUESTIONS REGARDING THE GUIDELINES SHOULD BE DIRECTED TO THE EMPLOYEE'S SUPERVISOR OR THE CHIEF OPERATIONS OFFICER. TJM AND HAVENTECH RESERVE THE RIGHT TO ALTER, CHANGE, ADD TO, DELETE OR DISCONTINUE ANY OF THESE POLICIES, PROCEDURES, BENEFITS OR GUIDELINES AT ANY TIME, WITH OR WITHOUT NOTICE.

I. WELCOME TO HAVENTECH

A. Introduction

It is our pleasure to welcome you to Haventech, LLC (referred to in this Employee Handbook as "Haventech" or the "Company"). TJM Holdings, LLC is a leading independent broker offering front, middle, and back office services to institutional customers accessing the world financial markets. Haventech is responsible for offering technological support to TJM Holdings LLC, TJM Institutional Services LLC, and TJM Investments, LLC. We would like to extend our greetings and best wishes to you in your employment with us.

Haventech wants you to know about your opportunities, benefits, and responsibilities as an employee of the Company, and we have prepared this Handbook to provide guidance on our personnel policies, practices and procedures. It also generally describes the benefits we currently offer to eligible employees. The Handbook is intended as a guide to familiarize you with our overall benefits, policies, and procedures, and we encourage you to read it carefully. Because those benefits, practices and policies may be changed, added to, deleted and/or discontinued from time to time, with or without prior notice, the Handbook provides only a general description and current practice will prevail. This Handbook supersedes all prior publications covering the topics addressed, and those prior publications should be discarded, because they are obsolete. Employees are encouraged to present any questions they may have at any time about their employment to their supervisor or to the Human Resources Department.

B. Employment Status

Haventech emphasizes and strongly adheres to the principles of individual achievement, effort and freedom of choice. As a result, neither the employee nor Haventech is bound to an employment contract or commitment to employment for a definite period of time unless there is a written contract signed by a senior member of Haventech management, and the rights of either party to terminate the employment relationship are not limited by any contractual commitment. Employees should not consider this Handbook, or any other personnel document which may be

distributed or posted from time to time, as a contract of employment, and both employees and the Company remain free to terminate the employment relationship at any time, for any reason or no reason, with or without notice or cause.

C. Equal Employment Opportunity

Haventech is an equal opportunity employer, and it is the Company's policy and commitment to ensure that all employment-related decisions are made without regard to age, color, race, religion, sex (including pregnancy), sexual orientation, national origin, disability, marital status, military or military discharge status or any other legally protected status as required by applicable law. It is the Company's policy to treat all employees as fairly and equitably as possible, to judge all employees based upon business-related factors such as their performance, skills, abilities, and economic conditions, and by so doing, to comply with all applicable federal, state, and local laws relating to equal employment. The Company also provides reasonable accommodation to applicants and employees with disabilities and employees who are pregnant as required by law.

The Company will provide reasonable accommodations to employees with disabilities and to pregnant employees upon request as required by applicable law. Any employee seeking accommodation should advise the Human Resources Department. Information provided regarding medical conditions will be treated as confidential.

D. Types of Employment

Eligibility for certain benefits may depend upon employment classification, which includes: exempt or non-exempt status; full-time or part-time, or temporary status; or an administrative support capacity. The following provides a general description of these classifications:

1. Exempt/Non-Exempt

Employees are categorized by law as either "exempt" or "non-exempt" as follows:

Exempt employees are those employees who are paid on a salaried basis and whose specific job duties (*e.g.*, executive, administrative, professional or outside sales) are considered exempt from certain provisions under federal and state law, including overtime provisions. Exempt employees do not receive overtime pay, are paid on a salary basis, and their salary may not be subject to reduction based on variations in the quality or quantity of their work. Any exempt employee who feels an improper salary deduction has been made should alert the Human Resources Department immediately. The issue will be investigated and corrected if appropriate, and good faith efforts will be made to ensure it does not happen again.

Non-Exempt - Employees who are not performing exempt job duties or who are not paid on a salaried basis are classified as non-exempt. Non-exempt employees receive overtime pay of one and one-half times their regular rate

of pay for all hours actually worked over 40 in a work week in accordance with applicable law.

2. Full-Time, Part-Time and Temporary

Employees may be categorized as full-time, part-time or temporary as follows:

Full-time – Employees who are generally scheduled to work a minimum of 40 hours per week on a regular basis are considered “full-time” and are generally eligible to receive benefits offered by Haventech.

Part-time – Employees who are usually scheduled to work less than 40 hours per week on a regular basis are considered “part-time” and are generally not be eligible for most benefits available to full-time employees or they are eligible on a *pro rata* basis, depending on the number of hours they work.

Temporary – Employees who are hired to perform a specific job or for a specific limited purpose or period of time on either a full-time or part-time basis are considered temporary employees and are not eligible for any benefits.

3. Administrative Support Employees

Employees are classified as administrative support employees as follows:

Administrative support employees – Employees who do not engage in trading and perform administrative/clerical functions only are considered administrative support employees. They are considered “at-will” employees, and the provisions of this Handbook apply to them.

Administrative support employees may be subject to different work rules and may be eligible for different benefits or different levels of benefits.

E. Anti-Harassment

It is the policy of the Company to maintain a work environment free of harassment on the basis of race, color, religion, age, sex, pregnancy, ancestry, sexual orientation, gender identity, national origin, disability, marital status, parental status, military or military discharge status and any other legally protected status as required by applicable law.

The Company is committed to maintaining a work environment in which all individuals are treated with respect and dignity. Each individual should have the ability to work in a productive and professional atmosphere that promotes equal employment opportunities and prohibits discriminatory practices, including harassment and retaliation. Therefore, the Company expects

that all relationships among persons in the workplace will be businesslike and free of bias, prejudice and harassment.

This policy is designed not only to comply with Haventech's legal obligations, but also to create a more positive work experience for all applicants and employees. Any concerns raised under this policy will be resolved in management's judgment to prevent unlawful harassment and also to create a more positive work environment.

Prohibited harassment may take different forms and may be based on any of the protected categories listed above. The Company prohibits and will not tolerate such harassment of any Company employee, regardless of whether harassing conduct is committed by a manager, employee, temporary agency employee, broker, vendor, contractor, consultant, customer, office tenant, guest, or anyone else with whom employees must come into contact while performing their job duties in the workplace and during business-related meetings, trips, and social events.

1. Definition of Sexual Harassment

One specific form of prohibited harassment is that based on sex. Sexual harassment constitutes discrimination on the basis of sex and is illegal under federal, state and local laws. For the purpose of this policy, sexual harassment is defined in the Equal Employment Opportunity Commission Guidelines as "unwelcome sexual advances, requests for sexual favors and other verbal or physical conduct of a sexual nature" when, for example:

- (a.) submission to such conduct is made either explicitly or implicitly a term or condition of an individual's employment;
- (b.) submission to or rejection of such conduct by an individual is used as the basis for employment decisions affecting such individual; or
- (c.) such conduct has the purpose or effect of unreasonably interfering with an individual's work performance or creating an intimidating, hostile or offensive working environment.

Sexual harassment may include subtle conduct and may involve individuals of the same or different gender. Depending on the circumstances, prohibited harassment may include, but is not limited to, unwanted sexual advances or unwanted demands for sexual favors, sexual jokes and innuendo; verbal abuse of a sexual nature; commentary about an individual's body, sexual prowess or sexual deficiencies; leering, catcalls or touching; insulting or obscene comments or gestures; display or circulation (including through electronic media) in the workplace of sexually suggestive or offensive objects, pictures or printed materials; and other physical, verbal or visual conduct of a sexual nature.

In the City of Chicago, sexual harassment also includes by definition, "unwelcome conduct of a sexual nature" and "sexual misconduct," which means "any behavior of a sexual nature which also involves coercion, abuse of authority, or misuse of an individual's employment position." All employees must participate in sexual harassment prevention training and bystander training on an annual basis.

2. General Definition of Harassment

Harassment on the basis of any other legally protected status is also strictly prohibited. Under this policy, prohibited harassment includes slurs and other verbal or physical conduct relating to an individual's race, color, religion, age, sexual orientation, national origin, disability, marital status, military or military discharge status or any other legally protected status or that of his/her relatives, friends or associates, when the conduct:

- (a) has the purpose or effect of creating an intimidating, hostile or offensive working environment;
- (b) has the purpose or effect of unreasonably interfering with an individual's work performance; or
- (c) otherwise adversely affects an individual's employment opportunities.

Prohibited harassment includes, but is not limited to: using any demeaning or offensive language regarding one's protected status (including epithets, slurs, or denigrating jokes); stereotyping; threatening, intimidating or engaging in any unwelcome physical contact; and displaying or circulating (including through email) in the workplace any written or graphic material that denigrates or shows hostility or aversion toward an individual or group based on protected status.

Any questions about what is appropriate or whether a situation is a specific violation of this policy should be directed to the Human Resources Department or a member of TJM senior management. As a general rule, employees should not do anything if they have any doubts.

The Company expects everyone at Haventech to behave in a manner appropriate for the work environment, and not just to avoid the most extreme, unlawful actions. Whatever form it takes – words, gestures, pictures or printed material – verbal, non-verbal, or physical – all types of prohibited harassment are insulting and demeaning, and such conduct will not be tolerated. All employees, brokers, and third parties doing business with TJM or Haventech are expected to be aware of their own conduct and its impact on others and to comply with this policy. No one is exempt.

3. Reporting Procedure

Employees who observe conduct that is prohibited by this policy or feel they have been a target of such harassment should clearly state their objection to the harassment and any reasonable objection should be respected by others. If voicing an objection and asking for the conduct to stop does not prove effective or asking the individual to stop does not constitute a reasonable alternative under the particular circumstances involved, employees should report the matter immediately. Delay in raising these concerns often leads to more difficult situations, and the Company strongly urges employees not to delay if they have concerns about harassment.

Employees may contact their immediate supervisor with any harassment issue, and he or she will bring such concerns to the attention of the Human Resources Department. If an employee

feels uncomfortable reporting the matter to his or her supervisor, the employee should report the matter directly to the Human Resources Department or any other Company senior manager to whom they feel comfortable reporting, and notify him or her of the facts and concerns by phone, in person, or in writing. In Chicago, employees may also submit a confidential report through the Company's internal reporting mechanism. This can be done by emailing a report to confidential.reporting@tjmbrokerage.com.

It is illegal in Chicago to retaliate against an employee for reporting harassment. By no means will an employee be retaliated against for following the reporting procedures outlined in this policy.

In addition to the Company's internal reporting methods, Chicago employees have the right to file charges of sexual harassment with the government agencies listed below. All external charges of discrimination in which the Company is identified as a Respondent, should be immediately directed to Human Resources.

Chicago Commission on Human Relations:
740 N. Sedgwick, 4th Floor
Chicago, IL 60654
312-744-4111
cchr@cityofchicago.org

U.S. Equal Employment Opportunity Commission (EEOC):
Chicago District Office
230 South Dearborn St., Suite 1866
Chicago, Illinois 60604
321-872-9744 866-740-3953 (TTY)
<https://publicportal.eeoc.gov/Portal/Login.aspx>

Illinois Department of Human Rights:
555 W. Monroe Street, Suite 700
Chicago, IL 60601
312-814-6200
312-740-3953 (TTY)

4. Investigation Procedure

Upon notice of a harassment issue, Haventech will investigate the matter in as timely and discreet a manner as possible, and may consult with outside experts to help gather the relevant facts. The Company may also confer with those people involved and any named or apparent witnesses. All employees, brokers, and third parties will be expected and required to cooperate fully and provide truthful and complete information during this process. No one will be subject to retaliation for bringing good faith concerns to the Company's attention or for assisting in an investigation. Any complaints or issues of retaliation should be reported (and will be handled by the Company) in the same manner as harassment issues.

If an investigation leads to the conclusion that harassment or retaliation in violation of this policy has occurred, the Company will take action to remedy and stop the harassment or retaliation promptly and to prevent it from happening again. Depending upon the seriousness of the misconduct and the surrounding circumstances, the consequences may include termination, suspension, disciplinary probation, transfer or other appropriate action in the judgment of the Company's management. Other types of preventative action may be necessary in situations involving outside parties over whom the Company has limited control.

F. Initial Employment Period

The Company considers the first 90 days of employment to be extremely important because it is during this time that it decides whether an employee meets the high standards set forth for all employees. It is also the time during which an employee learns about the Company and has an opportunity to decide whether he/she wishes to continue working for it. All employees generally are eligible for health benefits the first of the month following the date of hire.

Haventech hopes that things will work out favorably during this time. Supervisors are available to assist employees with advice and answer questions during this critical period.

Nothing about the 90-day initial employment period guarantees continued employment for 90 days or in any way alters the "at will" nature of employment.

II. EMPLOYEE BENEFITS

The following is a general description of the various benefits currently offered to eligible employees. Some of these benefits are governed by benefit plan documents which are subject to periodic change. All such benefits are subject to the terms, conditions, restrictions and other eligibility requirements set forth in the applicable plan document(s). **IN THE EVENT OF ANY DIFFERENCE OR INCONSISTENCY BETWEEN THIS HANDBOOK AND THE PLAN DOCUMENT, THE PLAN DOCUMENT WILL GOVERN IN ALL CASES.** The Company reserves the right to change, modify, add to and/or discontinue any benefit from time to time, with or without notice, in its sole discretion. The Company, however, will endeavor to notify employees of these changes when and if they occur.

A. Health and Dental Insurance

The Firm currently offers Health and Dental plans through Blue Cross Blue Shield of Illinois. Five Health plans are available, two Health Savings plans, two PPO plans and a HMO plan (Illinois Only). Two Dental plans are available—a High plan and a Low plan. All plans are outlined in our Benefit Guide. Employees should direct any questions regarding the Firm's group health or dental insurance plans to the Human Resources Department or review the information, including an explanation of benefits posted on BCBS's website at <https://www.bcbsil.com>.

B. Long Term Disability

The Company currently offers long-term disability insurance, subject to the terms and conditions of the plan in effect from time to time, and in accordance with the rates determined by the carrier. Employees who have questions should contact the Human Resources Department.

C. COBRA

Eligible employees who are covered under the Company's group health insurance plan will be notified of their right to continue coverage under that plan pursuant to the Consolidated Omnibus Budget Reconciliation Act of 1985 ("COBRA") when and if they experience a "qualifying event" which makes them eligible for such coverage.

D. Life Insurance

The Company currently offers life insurance to eligible employees. Life insurance benefits are subject to the terms and conditions of the policy in effect from time to time. See the Human Resources Department if you have any questions.

E. Holidays

The Company provides various paid holidays each calendar year for eligible employees. The Company generally schedules its paid holidays in accordance with those federal holidays recognized by the major U.S. exchange floors on which its employees work, but this is subject to change at the discretion of the Company

Only full-time employees who have satisfactorily completed the initial employment period are eligible for paid holidays. The Company currently observes the following holidays:

New Year's Day
Martin Luther King Day
President's Day
Good Friday
Memorial Day
Juneteenth
Fourth of July
Labor Day
Thanksgiving Day
Christmas Day

In order to receive holiday pay, eligible employees must be present the entire scheduled workday before and after the holiday. Tennessee employees that are veterans are also eligible to take the entirety of Veteran's Day off as an unpaid holiday.

F. Vacation

All full-time employees are eligible to accrue paid vacation time. During the first year of employment, vacation time is earned starting on the first day of employment on a pro-rated basis, and may be used as earned. Full-time employees accrue vacation time as of their anniversary date as follows:

<u>Years of Service</u>	<u>Vacation Eligibility</u>
1 to 4	10 days (.83 days per month)
5 to 9	15 days (1.25 days per month)
10 and over	20 days (1.67 days per month)

All requests for vacation generally must be made at least two weeks in advance and approved by the employee's supervisor. The Company may deny vacation time requests because of staffing needs or scheduling conflicts. Vacation time should be taken in increments of no less than one-half day and no more than one week except under limited circumstances and in the Company's discretion.

Taking time off for vacation is very important to everyone's health and well-being. Therefore, the Company does not allow pay in lieu of accrued vacation time. Additionally, unused vacation time generally cannot be carried over from one year to the next. However, some carryover of unused vacation time may be permitted in certain cases depending on the circumstances and only with the prior written approval of Haventech senior management.

The Company complies with all applicable state and federal law requirements in connection with the payment of accrued, unused vacation pay upon termination of employment.

Chicago Paid Sick and Safe Leave Ordinance

Beginning July 1, 2024, all Chicago employees will earn paid leave that may be used for any reason. While full-time employees will continue to accrue vacation leave in accordance with the seniority structure outlined above, full-time employees will be able to use up to 40 hours of accrued vacation time per year for any reason under the terms detailed below. Part-time Chicago employees will accrue paid leave that may be used for any reason at a rate of 1 hour of leave for every 35 hours worked, up to a maximum of 40 hours per year. Employees will begin accruing this leave on July 1, 2024, or their first day of employment, whichever is later. Employees may not use leave in accordance with this policy until 90 days following July 1, 2024, or their first day of employment, whichever is later.

When requesting leave pursuant to this policy, full-time employees must indicate that they are seeking to use Chicago Paid Sick and Safe Leave. Haventech asks all employees to provide seven days' notice for foreseeable leave requests, such as appointments, and notice as soon as practicable, but prior to the scheduled shift, when leave is unforeseeable. Employees requesting to

take foreseeable leave must receive pre-approval from management. Haventech will only deny leave requested pursuant to this policy on the basis of operational necessity.

Employees may use leave under this policy in no smaller than 4 hour increments. Chicago employees will be allowed to carryover up to 16 hours of paid leave under this policy between accrual years. Unused paid leave accrued in accordance with this policy will be paid out on separation only when required by the Chicago Paid Sick and Safe Leave Ordinance. Employees will be provided with an accounting of their available paid leave on pay stubs or upon request.

G. Paid Personal Days

Full-time employees who have satisfactorily completed the initial employment period are eligible for up to two paid personal days per calendar year in order to observe days of personal significance such as religious holidays, birthdays, personal emergencies, funerals and other similar reasons. Compensation is not provided in lieu of taking paid personal days, nor may unused paid personal days be carried over from one year to the next. Whenever possible, employees should receive the advance approval of their supervisor to take a paid personal day. Employees may take a personal day at the rate of one personal day per six-month period. Employees will not be paid for unused paid personal days upon termination of employment.

H. Paid Sick Time

Eligible Haventech employees who work at least 80 hours in any 120-day period accrue paid sick time at the rate of one hour for every 40 hours worked¹ to a maximum 40 hours per year except where more is required by applicable state or local law as detailed below. A maximum of 60 hours of accrued sick time may be carried over from one year to the next. Paid sick time may not be used before completion of 90 days of employment except where prohibited by applicable state or local law.

Paid sick time may be used for the following reasons:

1. The employee or the employee's family member² is ill, injured, or is receiving medical care, treatment, diagnosis or preventative medical care; or
2. A public official closes the employee's place of business because of a public health emergency, or the employee needs to care for a child after a public official has closed the child's school or place of care because of a public health emergency.

Paid sick time may be used in increments of no less than four hours.

¹ Exempt employees are assumed to work 40 hours per week for purposes of sick time accrual.

² Family members include the employee's child, adopted child, step-child, foster child, child to whom the employee stands *in loco parentis*; legal guardian or ward, spouse, domestic partner; parent, foster parent, step-parent, adoptive parent, legal guardian of the employee, a person who stood in loco parentis when the employee was a minor, a spouse or domestic partner's parent, sibling, grandparent, or any other individual related by blood or whose close association with the employee equated to a family relationship.

Employees should request paid sick time at least seven days in advance, if possible and unless the employee is unconscious or otherwise incapacitated. If advance notice is not possible, notice should be given as soon as it is feasible. Eligible employees who are off work for three or more consecutive days due to their own illness, injury, or medical care will be required to provide a certification from a healthcare provider, as well as a fitness for duty certification when returning to work. Once paid sick time has been exhausted, employees must use accrued unused vacation time, if available, to cover any additional time off, unless mandated use is prohibited by applicable state or local law.

Additional State and Local Requirements

Beginning July 1, 2024, all Chicago employees will accrue paid sick leave at a rate of 1 hour for every 35 hours worked up to a maximum 40 hours per year. Employees will begin accruing this leave on July 1, 2024, or their first day of employment, whichever is later. Employees may not use leave in accordance with this policy until 30 days following July 1, 2024, or their first day of employment, whichever is later.

Chicago employees will be able to use paid sick time under this policy for the reasons and using the procedures stated above in TJM's standard Paid Sick Time policy. Employees may use paid sick time accrued under this policy in no smaller than 2 hour increments. Chicago employees will be allowed to carryover up to 80 hours of accrued, unused sick time between accrual years. Chicago employees will be provided with an accounting of their available paid leave on pay stubs or upon request.

Employees will not receive pay for unused accrued sick time upon termination of employment.

New Jersey employees will accrue this leave type at a rate of one hour for every 30 hours worked up to 40 hours per year. New Jersey employees may use this leave type for:

- Diagnosis, care, or treatment, or recovery from, a mental or physical illness, injury, or other adverse health condition or preventive medical care for an employee or their family member;
- Specified purposes if the employee's family member is a victim of domestic or sexual violence;
- Closure of employee's place of business, a child's school or place of care, or need to care for a family member due to a public health emergency;
- Attendance at a school-related conference, meeting, function, or other event requested or required by a school administrator, teacher, or other professional staff member responsible for the employee's child's education, or a meeting regarding care provided to the child regarding the child's health conditions or disability; or
- For specified purposes during epidemic related emergencies.

New York employees will accrue this leave type at a rate of one hour for every 30 hours worked up to 56 hours per year. New York employees may begin using this leave immediately upon accrual. New York employees may use this leave type for:

- Diagnosis, care, or treatment of a mental or physical illness, injury, or health condition of, or preventive medical care for, an employee or employee's family member;
- Closure of employee's place of business, a child's school or place of care, or care for a family member due to a public health emergency;
- The following purposes when the employee or their family member has been the victim of domestic violence, a family offense, sexual offense, stalking, or human trafficking:
 1. Obtaining services from a domestic violence shelter, rape crisis center, or other shelter or services program.
 2. Participating in safety planning, temporary relocation, or other actions to increase the safety of the employee or their family members from future incidents;
 3. Meeting with a civil attorney or other social service provider to obtain information and advice on, and prepare for or participate in, any criminal or civil proceeding;
 4. Filing a complaint or domestic incident report with law enforcement.
 5. Meeting with a district attorney's office.
 6. Enrolling children in a new school.
 7. Taking other actions necessary to maintain, improve, or restore the physical, psychological, or economic health or safety of the employee their family member or to protect those who associate or work with the employee.

I. Family and Medical Leaves of Absence

Where applicable, the Company complies with the federal Family and Medical Leave Act of 1993 ("FMLA") and state statutes regarding family and medical leave. To the extent a state statute provides broader coverage, the state statute will be coordinated with the FMLA.

The following generally describes the FMLA and the Company's policy on use of FMLA. More detailed information may be obtained from the Human Resources Department. In the event of a conflict between this policy and applicable law, employees will be afforded rights as required by law.

Any questions regarding this policy should be directed to the Human Resources Department.

1. Eligibility

Employees are eligible for FMLA leave only if: (1) they have been employed by the Company for at least 12 months (which need not be consecutive); (2) they have worked at least 1,250 hours during the 12 months immediately preceding the start of the leave; and (3) there are at least 50 employees employed by the Company within a 75-mile radius of the facility at which the employee works.

2. Qualifying Reasons for Leave

The FMLA provides unpaid, job-protected leave for the following reasons:

- (a) To care for a child after birth (leave to be taken within 12 months after the birth of the child);
- (b) To care for a child after placement for adoption or foster care (leave to be taken within 12 months of the placement of the child);
- (c) To care for a spouse, son, daughter, or parent³ with a "serious health condition;"
- (d) Because of the employee's own "serious health condition" that makes him/her unable to perform the functions of the job;
- (e) Because of any "qualifying exigency" arising out of the fact that a spouse, son, daughter, or parent is a covered service member on active duty (or has been notified of an impending call or order to active duty) in support of a contingency operation; or
- (f) To care for a covered service-member or veteran who served with the preceding five years who has a serious injury or illness that was incurred in the line of duty while on active duty or that existed prior to active duty but was aggravated in the line of duty while on active duty (for which he/she is undergoing medical treatment, recuperation, or therapy; or otherwise in outpatient status; or otherwise on the temporary disability retired list) if the employee is the spouse, son, daughter, parent, or next of kin⁴ of such covered service-member; or
- (g) To care for the parent of a service member if the parent is unable to take care of the parent and the leave is necessitated by the service member's active duty; or
- (h) To spend time with a service member who is on "rest and recuperation" leave.

3. Amount of Leave

The total amount of FMLA leave that may be taken is a maximum of 12 weeks during any rolling 12-month period except in the case of paragraph military caregiver leave, for which the maximum leave allotment is a combined total of 26 weeks during a single 12-month period for all types of FMLA leave (however, only a total of 12 weeks of which may be taken for the other FMLA-qualifying reasons, paragraphs (a)-(e) above). Military caregiver leave is applied on a per-covered-service-member, per-injury basis.

³ The parent of a "son" or "daughter" eligible for FMLA leave includes the biological, adoptive, step or foster parent, or an individual who stands in the place of a parent and takes on parental duties. A "parent" includes someone who stood in the place of a parent when the employee was a child.

⁴ A "next of kin" includes the nearest blood relative, other than the service member's spouse, parent, son or daughter, in a designated order of priority.

If a spouse also works for the Company and both become eligible for a leave under paragraphs (a) or (b) above, or for the care of a sick parent under paragraph (c) above, the two together will be limited to a combined total of 12 weeks of leave in any rolling 12-month period (or 26 weeks in cases where the spouses are eligible for military caregiver leave under paragraph (f) above).

4. Qualifying Exigency

For purposes of this policy, "qualifying exigency" relating to military leave may include such things as short-notice deployment, military events and related activities, childcare and school activities, financial and legal arrangements, counseling, rest and recuperation, post-deployment activities and other activities arising out of the covered military member's active duty or call to active duty status as agreed by the employee and the Company.

5. Serious Health Condition

"Serious health condition" means an illness, injury, impairment, or physical or mental condition that involves any of the following:

- (a) An overnight stay in a hospital, hospice, or residential medical care facility, including any period of incapacity or subsequent treatment connected with such inpatient care; or
- (b) A period of incapacity requiring an absence of more than three consecutive, full calendar days from work (including any subsequent treatment or period of incapacity relating to the same condition), that also involves either: (i) treatment by a health care provider, a nurse under direct supervision of a health care provider, or a provider of health care services under orders of, or on referral by, a health care provider two or more times within 30 days of the first day of incapacity, unless extenuating circumstances exist; or (ii) treatment by a health care provider on at least one occasion which results in a regimen of continuing treatment under the supervision of the health care provider. Such treatment, under (i) and (ii) above, means an in-person visit to a health care provider. The first (or only, as applicable) in-person treatment visit must take place within seven days of the first day of incapacity; or
- (c) Any period of incapacity due to pregnancy or for prenatal care; or
- (d) Any period of incapacity or treatment due to a chronic serious health condition. A chronic serious health condition is one in which: (i) requires periodic visits (defined as at least twice a year) for treatment by a health care provider, or by a nurse under direct supervision of a health care provider; (ii) continues over an extended period of time (including recurring episodes of a single underlying condition); and (iii) may cause episodic rather than a continuing period of incapacity; or

- (e) A period of incapacity which is permanent or long-term due to a condition for which treatment may not be effective and the employee or family member is under the continuing supervision of, but need not be receiving active treatment by, a health care provider; or
- (f) Any period of absence to receive multiple treatments (including any period of recovery there-from) by a health care provider or by a provider of health care services under orders of, or on referral by, a health care provider for either (i) restorative surgery after an accident or other injury, or (ii) a condition that would likely result in a period of incapacity of more than three consecutive, full calendar days in the absence of medical intervention or treatment.

In most cases, short-term, non-chronic conditions such as the cold, flu, ear aches, upset stomach and headaches (other than migraines) are not serious health conditions and therefore, do not qualify for FMLA leave.

6. Intermittent and Reduced Schedule Leave

FMLA leave may be taken continuously, and in some cases, intermittently or on a reduced work schedule basis when certified as medically necessary. When an employee needs FMLA leave intermittently or on a reduced work schedule basis for planned medical treatment, the employee must make a reasonable effort to schedule the treatment so as not to unduly disrupt the Company's business operations.

When the employee or a family member needs intermittent or reduced schedule leave that is foreseeable or based on planned medical treatment, or to care for a child after birth placement, the Company may require the employee to transfer temporarily to an alternate position for which the employee is qualified with equivalent pay and benefits which better accommodates a reduced schedule or intermittent periods of absence.).

7. Notification and Reporting Requirements

(a) Timing

Employees must provide the Human Resources Department with timely notice of the need for FMLA leave. When seeking foreseeable FMLA leave based on an expected birth, placement for adoption or foster care, or planned medical treatment for either the employee or a family member's serious health condition or for that of a covered service member with a serious injury or illness, the employee must request the leave at least 30 days before leave is to begin. If 30 days' notice is not practicable or the leave is due to an emergency or is otherwise not foreseeable, the request must be provided as soon as practicable. Where the need for FMLA leave is foreseeable based on a qualifying exigency, the employee must request the leave as soon as practicable. A delay in submitting a request for FMLA leave could result in a delay of the start or authorization of leave.

To request leave, employees should contact the Human Resources Department. They must also comply with the Company's regular notice and procedural requirements for

requesting any leave, absent unusual circumstances. Failure to comply with such requirements may result in the leave being delayed or denied.

(b) Information to be provided

After requesting FMLA leave, employees will be provided with a written certification which must be completed. Employees are responsible to provide information sufficient to confirm the need for FMLA-qualifying leave and the anticipated timing and duration of the leave. See description below.) Additionally, employees must respond to any questions that the Company may have in order to determine whether the requested leave is potentially FMLA-qualifying. Failure to complete the certification and/or submit it in a timely manner (usually not more than 15 days after a request) may result in denial of job-protected FMLA leave.

(c) Reporting/Recertification

During the leave, employees may be required to report periodically on their status and intention to return to work and to submit recertification if additional leave is requested.

(d) The Company's notice

The Company will provide employees with notices of eligibility, rights and responsibilities and FMLA designation in accordance with applicable law.

8. Substitution of Paid Leave

Employees are required to use any applicable accrued and unused paid sick days and personal days for all periods of FMLA leave. Once applicable paid time of is exhausted, FMLA leave will continue on an unpaid basis, until the maximum FMLA leave entitlement is exhausted or FMLA leave is no longer needed. Any paid leave that is substituted for unpaid FMLA leave will run concurrently with the FMLA leave entitlement, and it does not increase the amount of FMLA time available. Employees are entitled to a maximum of 12 weeks of FMLA leave (or 26 weeks where leave is due to caring for a covered service-member with a serious injury or illness) in any rolling 12-month period, paid or unpaid. Employees need not use PTO if they are eligible to receive short-term disability, workers compensation or any other Company-paid disability leave plan benefit during FMLA leave.

9. Certifications

Any request for a leave under paragraphs (c), (d) (e) or (f) under Qualifying Reasons for Leave above, must be supported by written certification. The medical certification form can be obtained from the Human Resources Department. Certifications must be submitted as soon as practicable, but generally not later than fifteen (15) calendar days after they have been requested, unless not practicable due to extenuating circumstances. Failure to provide the proper medical certification in a timely manner may result in the denial of leave.

(a) Certifications for Serious Health Conditions

To support the need for FMLA leave due to a serious health condition of the employee or a family member, employee must provide medical certification issued by a licensed healthcare provider. Alternatively, the Company may allow the employee to comply with the certification requirement by authorizing the Company to obtain such information by communicating directly with the health care provider. The Company may also contact the health care provider for purposes of clarification and authentication of the medical certification in accordance with applicable law if authorized to do so. In any case where there is reason to question the validity of the certification, the Company may require, at its own expense, a second opinion from a healthcare provider other than the healthcare provider used by the employee. If the second opinion differs from the original certification, the Company may require, again at its own expense, a third medical opinion which will be final and binding on all parties.

Additionally, when on FMLA leave for a serious health condition of the employee or a family member, the employee must recertify the need for leave generally when the previous certification expires or every thirty (30) days, whichever is longer provided, however, that the Company in all cases may request recertification every six months in connection with an absence. Recertification may be requested in less than 30 days, however, when an employee request an extension of FMLA leave, circumstances described in the certification have changed significantly, or the Company obtains reason to doubt the stated reason for the need for leave or the continuing validity of the certification.

(b) Certifications for qualifying exigencies

When seeking FMLA leave for a qualifying exigency, employees must submit a written certification, generally within 15 days. Such certifications may require information, including, but not limited to, a copy of the covered military member's active duty orders, a signed statement of the appropriate facts regarding the particular qualifying exigency, the date on which the qualifying exigency commenced, the dates of absence and the contact information for any third parties involved in the qualifying exigency. The Company may contact any such third party or the Department of Defense to verify a certification. Failure to provide the certification may result in denial of FMLA leave.

(c) Certifications for military caregiver leave

When seeking FMLA leave to provide care for a covered service-member with a serious injury or illness, employees must document the need for leave with a written certification providing information from an authorized health care provider (e.g., whether the injury or illness was incurred in the line of duty on active duty, the approximate date on which the injury or illness commenced and probable duration, and a statement of the covered service-member's health condition) and the employee and/or the covered service-member (e.g., the name of the covered service-member, his/her relationship to the employee, and a description of the care to be provided and an estimate of the leave needed to provide the care). The Company may also contact the health care provider for purposes

of clarification and authentication of the medical certification in accordance with applicable law and upon the employee's approval.

10. Return from Leave

Upon a timely return from FMLA leave, employees will be reinstated to the same position or an equivalent position (with equivalent pay, benefits and other terms and conditions of employment) unless they are designated as a "key employee" (i.e., "an employee among the highest paid 10 percent of all Company employees within 75 miles of the employee's worksite," as further defined by the FMLA) or if business circumstances have changed. A determination as to whether a position is an "equivalent position" will be made by the Company by looking at factors including pay, benefits, working conditions, privileges, perquisites, status, and by reviewing the applicable duties and responsibilities of the position.

Employees who fail to return to work at the expiration of an approved FMLA leave may be considered to have resigned employment with the Company in accordance with applicable law. If an employee fails to return upon the exhaustion of the FMLA entitlement, reinstatement cannot be assured.

If FMLA leave was a result of the employee's own serious health condition, the employee must provide medical certification from his/her health care provider confirming the ability to resume work and perform the essential functions of the job (with or without accommodation) as a condition of reinstatement from leave. The Company may contact the health care provider for purposes of clarifying and/or authenticating this medical certification in accordance with applicable law. Employees will not be returned to work until they have submitted this documentation.

11. Benefits During Leave

During FMLA leave, the employee's health coverage under the Company's group health plan, if applicable, will be maintained under the same conditions coverage would have been provided if the employee were actively working. For any portion of FMLA leave that is paid leave, the Company will continue to make payroll deductions to collect the employee's share of the premium for health care coverage. For any portion of FMLA leave that is unpaid, the employee must make arrangements for the continuation of and payment of their share of the insurance premiums. If the payment is more than 30 days late, health care coverage may be discontinued in accordance with applicable law. Except under limited circumstances, if an employee does not return to work after the leave, or fails to pay a portion of the premiums, the employee will be required to reimburse the Company for any health insurance premiums paid by the Company during the leave.

12. Consequences for Not Complying with FMLA Obligations

Failure to meet the applicable notice, certification or re-certification requirements may result in a delay or denial of a request for leave, a denial of reinstatement following the leave, counting the related absences against the employee. Where applicable, the Company complies with the federal Family and Medical Leave Act of 1993 ("FMLA") and state statutes regarding family and

medical leave. To the extent a state statute provides broader coverage, the state statute will be coordinated with the FMLA.

The following generally describes the FMLA and the Company's policy on use of FMLA. More detailed information may be obtained from the Human Resources Department. In the event of a conflict between this policy and applicable law, employees will be afforded rights as required by law.

Employees who have any questions regarding this policy should contact the Human Resources Department.

J. State Family and Medical Leave Laws

Connecticut Paid Family and Medical Leave Act (“CPFMLA”)

The Connecticut Family and Medical Leave Act requires employers to offer leave under similar circumstances to the federal FMLA, without the 50 employee minimum for eligibility. The CPFMLA is an insurance based partial wage replacement program that is funded through wage deductions. Connecticut employees who have been employed with the Firm for at least 12 weeks are eligible for this leave type. Connecticut employees may receive partial wage replacement for:

- Birth;
- Adoption;
- Foster care placement;
- Caring for a family member with a serious health condition;
- Caring for employee's own serious health condition;
- Serving as an organ or bone marrow donor; or
- Qualifying exigencies related to a spouse, child, or parent being on active duty.

Employees may take an additional two weeks for a serious health condition resulting in incapacitation during pregnancy. Employees who have worked for the Firm for at least three months prior to taking this leave are entitled to be restored to the same or an equivalent position with the same pay, benefits, and terms and conditions of employment upon return from leave.

The benefit amount under CPFMLA is determined by the state minimum wage, so that eligible employees receive:

- 95% of weekly earnings up to 40 times the minimum wage; and
- 60% of base weekly earnings above 40 times the minimum wage; up to a
- Maximum weekly benefit of 60 times the minimum wage.

If you have any questions regarding partial wage replacement under CPFMLA, please reach out to the Human Resources Department.

New Jersey Temporary Disability Benefits Law and Family Leave Insurance

The New Jersey Temporary Disability Benefits Law and Family Leave Insurance is an insurance based partial wage replacement program. For family leave, the program is funded entirely through wage deductions. For medical leave, the program is funded through both wage deductions and employer contributions. In New Jersey, employees who have worked at least 20 weeks are eligible for 12 weeks of paid family leave for:

- Birth;
- Adoption;
- Foster placement;
- Engaging in activities related to self or family member being a victim of domestic or sexual violence;
- Caring for a family member with a serious health condition; or
- During a communicable disease epidemic, caring for a family member who has been determined to jeopardize the health of others or who should be isolated or quarantine as a result of exposure to a communicable disease.

To receive paid leave, employees must provide 30 days' notice for birth, adoption, or foster care, provide reasonable notice to care for a family member, and apply for family leave benefits online or by mail. Eligible employees may also receive up to 26 weeks for an employee's own qualifying disability.

Wage replacement under this leave type is determined by state average weekly wage so that employees receive 85% of their average weekly leave, up to a maximum of \$1,025 per week (70% of state average weekly wage).

New York Paid Family Leave Benefits Law ("NYPFL")

The NYPFL is an insurance based partial wage replacement law. For paid family leave, the program is funded through wage deductions. For paid medical leave, the program is funded through both wage deductions and employer contributions. Full-time New York employees working at least 20 hours per week are eligible for this leave type after 26 consecutive weeks of employment. Part-time employees working less than 20 hours per week are eligible after 175 total days worked. Eligible employees may use this leave for up to 12 weeks for:

- Birth;
- Adoption;

- Foster care placement;
- Caring for family member with serious health condition; or
- Qualifying exigencies related to spouse, domestic partner, child, or parent being on active duty.

Eligible New York employees may also use leave under NYPFL for 26 weeks for the employee's own disability.

The benefit amount under the NYPFL is as follows:

- For family leave, employees receive 67% of their average weekly wage, up to a maximum of \$1,151.16 per week;
- For medical leave, employees receive 50% of their average weekly wage, up to 50% of the state average weekly wage per week.

Eligible New York employees may also be eligible for COVID-19 specific leave benefits for the duration of a mandatory quarantine or isolation period pursuant to a state or health department order or for the purpose of caring for a dependent child due to a school closure due to COVID 19. For more information regarding COVID-19 leave or any other benefit provided by the NYPFL, please reach out to the Human Resources Department.

K. Leave for Victims of Domestic or Sexual Violence

Employees in Illinois, New York, and Connecticut who are victims of domestic violence may be eligible for leave under applicable State laws, as follows:

Illinois:

An Illinois employee who is a victim of domestic or sexual violence or who has a family or household member who is a victim of domestic or sexual violence may be eligible for leave under the Illinois Victim's Economic Security and Safety Act ("VESSA"). Under VESSA, employees may take up to 12 work weeks of leave during a rolling 12-month period for the following purposes:

1. Seeking medical attention for, or recovering from, physical or psychological injuries caused by domestic or sexual violence to the employee or the employee's family or household member;
2. Obtaining services from a victim services organization for the employee or the employee's family or household member;
3. Obtaining psychological or other counseling for the employee or the employee's family or household member;

4. Participating in safety planning, temporarily or permanently relocating, or taking other actions to increase the safety of the employee or the employee's family or household member from future domestic or sexual violence or ensure economic security; or
5. Seeking legal assistance or remedies to ensure the health and safety of the employee or the employee's family or household member, including preparing for or participating in any civil or criminal legal proceeding related to or derived from domestic or sexual violence; or
6. Attending the funeral or alternative to funeral or wake of a family or household member who is killed in a crime of violence; making arrangements necessitated by the death of a family or household member who is killed in a crime of violence; or grieving the death of a family or household member who is killed in a crime of violence.

Illinois employees taking leave under this section must notify the Human Resources Department of their intent to take leave at least 48 hours before the start of the leave, unless it is not practicable to do so.

Upon timely return from leave under this policy, the employee will be placed in the same position he/she held when the leave commenced or an equivalent position with equivalent pay, benefits, and other terms and conditions of employment, unless the employee would have been terminated, or the terms and conditions of employment changed, for reasons unrelated to the VESSA leave. VESSA does not create a right for an employee to take unpaid leave that exceeds the unpaid leave time allowed under, or is in addition to the unpaid leave time permitted by, the FMLA.

While an employee is on VESSA leave, the Company will continue to provide and pay its portion of any group health insurance coverage in which the employee was enrolled before the VESSA leave began. During any period of VESSA leave, the employee must continue to pay his/her portion of the health insurance premium. Failure to pay the required portion of the health insurance premium within the time allowed by applicable law may result in the discontinuation of group health insurance coverage during the remainder of VESSA leave. Employees should contact the Human Resources Department for additional information concerning the amounts of their required portion of the group health insurance premium and payment arrangements.

If the employee fails to return from VESSA leave, the Company has the right to recoup from the employee premiums paid on his or her behalf by the Company during the employee's VESSA leave, as permitted under the law.

New York:

A New York employee who is a victim of domestic violence and must be absent from work for a reasonable time may be eligible for a reasonable accommodation under the New York Human Rights Law for the following purposes:

1. Seeking medical attention for injuries caused by domestic violence including for a child who is a victim of domestic violence, provided that the employee is not the perpetrator of the domestic violence against the child;
2. Obtaining services from a domestic violence shelter, program, or rape crisis center as a result of domestic violence;
3. Obtaining psychological counseling related to an incident or incidents of domestic violence, including for a child who is a victim of domestic violence, provided that the employee is not the perpetrator of the domestic violence against the child;
4. Participating in safety planning and taking other actions to increase safety from future incidents of domestic violence, including temporary or permanent relocation; or
5. Obtaining legal services, assisting in the prosecution of the offense, or appearing in court in relation to the incident or incidents of domestic violence.

New York employees taking leave under this section must provide Human Resources with reasonable advance notice of the employee's absence, unless such advance notice is not feasible.

The Company may require a New York employee taking leave under this section to charge any time off pursuant to such leave against any accrued benefit leave. An employee who must be absent from work under this section is entitled to the continuation of any health insurance coverage provided by the Company, to which the employee is otherwise entitled during any such absence.

Connecticut:

A Connecticut employee who is a victim of domestic violence or who has a family or household member who is a victim of domestic violence may be eligible for up to twelve days of leave per calendar year for the following purposes:

1. Seeking medical care or psychological or other counseling for physical or psychological injury or disability for the victim;
2. Obtaining services from a victim services organization on behalf of the victim;
3. Relocating due to such family violence; or
4. Participating in any civil or criminal proceeding related to such family violence.

Connecticut employees taking leave under this section must provide Human Resources with advance notice of up to seven days prior to the date such leave is to begin. If the need for leave is not foreseeable, the employee must provide the Company notice as soon as practicable.

Connecticut employees may also be eligible for a reasonable leave of absence to do any of the following concerning one or more incidents of domestic violence, unless the employee is the perpetrator of the domestic violence:

1. Seek attention for injuries, including to a child;
2. Obtain services including safety from a domestic violence agency or crisis center;
3. Obtain psychological counseling, including for a child;
4. Take other actions to increase safety from future incidents, including temporary or permanent relocation; or
5. Obtain legal services, assist in the prosecution of the offense, or otherwise participate in legal proceedings.

The Company may require an employee who requests leave under any of these statutes to provide certification that the employee or the employee's family or household member is a victim of domestic or sexual violence and the leave is for one of the purposes described above, as permitted under each law. The employee must provide certification as specifically described in each applicable law to the Company within a reasonable period after the Company requests it. The employee may also be required to provide additional documentation as described and as warranted under each applicable State law. Employees taking leave under this policy may be required to periodically report on their status and the date they expect to return to work. An employee's failure to timely return from a leave under this section on the designated date also will constitute a voluntary resignation.

The Company shall grant a leave of absence as warranted and as applicable under this section absent a showing of undue hardship. The Company strictly prohibits discrimination against or harassment of victims of domestic or sexual violence, or individuals whose family members are victims of domestic violence. Any employee who seeks a reasonable accommodation due to circumstances relating to being a victim of domestic or sexual violence or a family or household member being a victim of domestic or sexual violence should immediately discuss the matter with the compliance officer. The Company will not tolerate retaliation against any employee for requesting or taking leave under this section, requesting a reasonable accommodation, or reporting discrimination under this policy. The Company will keep all requests for leave or accommodations and all information provided to the Company under this section as confidential as possible.

L. Jury Duty

Employees called for jury duty should inform their supervisors as quickly as possible so that arrangements can be made to cover their job responsibilities during their absence. Employees must promptly submit a copy of the jury summons to their immediate supervisor. Paid time off will be provided as required by applicable law.

M. Witness and Crime Victims Leave

Employees are entitled to unpaid leave for:

1. Responding to a subpoena to appear as a witness in any criminal proceeding;
2. Attending a court proceeding or participating in a police investigation related to a criminal case where the employee is a crime victim;
3. Attending or participating in a court proceeding related to a civil case where the employee is a victim of family violence;
4. Obtaining a restraining order on the employee's behalf;
5. Obtaining a protective order on the employee's behalf.

Minnesota and Pennsylvania employees may also take leave where their spouse or immediate family member is the victim of a violent crime.

N. Voting Time

Employees are encouraged to vote before or after working hours. Time off, with or without pay, as required by applicable law, will be granted to vote, subject to the following:

- For employees in Illinois, an employee's work hours must not allow for at least two consecutive hours before or after work to vote;
- For employees in Utah, an employee's work hours must not allow for at least three consecutive hours before or after work to vote; and
- For employees in New York, an employee's work hours must not allow for at least four consecutive hours before or after work to vote.

O. Military Leave of Absence

The Company complies with applicable federal and state laws regarding the provision of military leaves of absence, and employee reinstatement rights. Employees enlisted in the United States Armed Forces or the State militia, including any military reserve or National Guard program, are asked to give their supervisor 30 days' notice of upcoming military duty or training lasting more than two days, if feasible. This notice requirement is waived in cases of emergency under applicable law. Employees who are spouses or parents of military personnel called to active service may receive a leave of absence and reinstatement to the extent required by applicable law. (See FMLA policy above.) .) Length of leave for eligible employees by state is detailed below. Any questions in this area should be addressed to the Human Resources Department.

Illinois employees may be eligible for 30 days of leave if their grandparent, parent, spouse or child is called to military service lasting longer than 30 days.

Minnesota employees may take up to 6 days in a calendar year leave to attend the following events for the employee's spouse, parent, or child:

- Departure ceremonies for deploying personnel;
- Return ceremonies for returning personnel;
- Family training or readiness events conducted by the military; or
- Official military reintegration programs.

New York employees serving in the United States armed forces will be reinstated consistent with New York Military Law Section 317 regardless of their length of leave. New York employees whose spouse is a member of the United States armed forces, National Guard, or Reserves who has been deployed during a period of military conflict to a combat zone may take up to 10 days of unpaid leave when that spouse is on military leave.

P. Bereavement Leave

The Company offers bereavement leave to provide a time for mourning after the loss of a family member as required by law. Up to two (2) days paid time off will be granted to any employee in the event of death of the following family members:

Spouse	Parent (or Parent in Law)
Brother	Grandparent
Sister	Child (or Grandchild)

Leave for attendance at the funeral of non-immediate family members or persons with some especially close relationship may be granted without pay. Determination will be made in a case by case basis.

In Illinois, eligible employees may take up to ten (10) working days of leave, three of which will be paid, for the following:

- to attend the funeral or alternative to a funeral for a covered family member;
- make arrangements necessitated by the death of the covered family member;
- grieve the death of the covered family member; or,
- be absent from work due to (i) a miscarriage; (ii) an unsuccessful round of intrauterine insemination or of an assisted reproductive technology procedure; (iii) a failed adoption match or an adoption that is not finalized because it is contested by another party; (iv) a

failed surrogacy agreement; (v) a diagnosis that negatively impacts pregnancy or fertility; or (vi) a stillbirth.

A “covered family member” includes an employee’s child, stepchild, spouse, domestic partner, sibling, parent, mother-in-law, father-in-law, grandchild, grandparent, or stepparent.

An employee is eligible for this leave if they have worked at least 1,250 hours for the Company during the prior 12-month period. The Company asks that, when reasonable and practicable, employees provide 48 hours of notice prior to beginning leave. While TJM may require a requesting employee to provide reasonable documentation prior to taking leave, the Company will not require an employee to disclose which category of qualifying event the leave request pertains to. Further, if the leave resulted from a pregnancy or adoption-related event, such documentation will not be required.

Taking leave under this section does not extend the maximum period of leave an employee is entitled to under the FMLA, but employees may elect to substitute any paid or unpaid leave for an equivalent period of leave under this section. The employee must complete his or her bereavement leave within sixty (60) days after the date on which the employee receives notice of the death of the covered family member or the occurrence of the pregnancy-related or adoption-related event. In the event of the death of more than one covered family member in a twelve-month period, an employee may take up to a total of six (6) weeks of unpaid bereavement leave in the twelve-month period.

Eligible Illinois employees, with the same eligibility requirements as above, are also entitled to a maximum of 6 weeks of unpaid bereavement time following the death of a child by suicide or homicide. The term “child” includes a biological child, an adopted or foster child, a stepchild, a legal ward, or a child of a person standing in loco parentis.

This leave time may be used to attend the funeral or alternative to a funeral, make arrangements necessitated by the death, or to grieve the death of the child. Leave under this section must be completed within one year after the date the Company receives notice of the death of the child and may be used in increments of at least 4 hours. The Company may require a requesting employee to provide reasonable documentation prior to taking leave. Please contact the Human Resources Department for additional information regarding bereavement leave and all other leave types.

Q. Small Necessities/School Visitation Leave

Eligible Illinois employees will be granted up to eight (8) hours of unpaid leave per school year, to be used in a maximum increment of four (4) hours per day to attend school conferences and other classroom related activities. Employees must give at least seven (7) days’ notice in cases of nonemergency. Reasonable notice of at least 24 hours will be expected under emergency situations. This requirement is to be applied on a discretionary, case-by-case basis. The company also complies with applicable other federal and state laws regarding school activity and visitation leave.

Eligible Minnesota employees may take 16 hours of leave during any 12-month period to attend any of the following events related to the employee's child or foster child if the event cannot be scheduled during non-work hours:

- School conferences;
- School-related activities;
- Child-care conferences, activities, services, and programs; or
- Pre-kindergarten conferences, activities, services, and programs.

The firm also complies with other applicable state and local laws regarding school activity and visitation leave.

R. Discretionary Leaves of Absence

The Company complies with applicable federal and state laws regarding the provision of paid and unpaid time off for leaves of absence. Any questions in this area should be addressed to the employee's supervisor.

Other personal leaves of absence are awarded at the Company's sole discretion based on a case-by-case basis.

S. Lactation Breaks

The Company will provide a reasonable amount of break time to accommodate team employees desiring to express breast milk for their infant child, in accordance with and to the extent required by applicable law. The break time, if possible, must run concurrently with rest and meal periods already provided. If the break time cannot run concurrently with rest and meal periods already provided, the break time will be unpaid, subject to applicable law.

The Company will make reasonable efforts to provide team members with the use of a room or location other than a toilet stall to express milk in private. This location may be the team member's private office, if applicable. The firm will make a reasonable effort to provide a location in close proximity to the employee's work area. New York employees may be eligible for this leave type for up to three years after childbirth.

Employees should advise management if they need break time and an area for this purpose. Employees will not be discriminated against or retaliated against for exercising their rights under this policy. The Company may not be able to provide additional break time if doing so would seriously disrupt the Company's operations, subject to applicable law. Please consult the Human Resources Department with questions regarding this policy.

T. Workers' Compensation

Should an employee become ill or injured due to a work-related event, he or she may be eligible to receive workers' compensation benefits. The insurance premiums for this benefit are paid for by the Company. Any employee who sustains a work-related injury or illness should report it to his/her supervisor immediately. Failure to do so could affect benefit eligibility.

U. New York Temporary Changes to Work Schedules Leave

New York City employees are eligible for up to two temporary schedule changes per calendar year due to a personal event. A temporary schedule change is defined as a limited alteration in the hours or times that or locations where an employee is expected to work, including, but not limited to using paid time off, swapping or shifting work hours, or using short-term unpaid leave. New York City employees may use this leave due to the following personal events:

- The need for a caregiver to provide care to a minor child or care recipient.
- An employee's need to attend a legal proceeding or hearing for subsistence benefits to which the employee, a family member, or the employee's care recipient is a party.
- Any circumstance that would constitute a basis for permissible use of safe time or sick time under New York City law.

III. FACILITIES AND SERVICES

A. Smoking

There is no smoking of any kind, inside the Company's facilities or within 15 feet of the entrances, exits and windows of the facilities. This restriction also prohibits the usage of any electronic smoking device, including but not limited to vaporizers and electronic cigarettes. Employees must observe posted smoking restrictions at all times.

B. Lunch Room

An area is set aside for the use of all employees. Employees should do their part to make sure it is kept clean, out of consideration for others and to maintain a professional work environment.

C. Expense Reimbursements

Please refer to TJM's Employee Expense Reimbursement Policy for information on how, and under what circumstances, Haventech reimburses certain employment-related expenses.

IV. SAFETY, HEALTH, AND SECURITY

A. Reporting Injuries

The Company takes steps to comply with all laws concerning coverage for work-related injuries and illness. Employees must immediately report all injuries or illness related to work, regardless of how small they may be, to their supervisor. First aid kits are located in reception. Generally, a written report will be prepared immediately and submitted to the Human Resources Department.

B. Security

To ensure everyone's safety, the Company must take certain security precautions. Visitors are not allowed beyond the reception area unless accompanied by an employee and they are on the Company's premises for business-related reasons. They must be accompanied by an employee at all times while on Company property.

Employees are not allowed in work areas of the Company at any time other than their scheduled work hours. Additionally, certain areas of the Company may be locked and accessible only by specific authorized employees (i.e. through their access badges). Employees are permitted access only to those areas of the Company where they must perform their duties. Employees accessing or attempting to access areas during non-working hours or areas which they have no authorization to enter are subject to disciplinary action, up to and including termination. Employees must have their employee identification with them at all times.

For safety and security reasons, the Company reserves the right to periodically and without notice inspect lockers, handbags, desks, lunch boxes, and any other items used for storage or the transportation of personal items on or off Company property. Such inspections may be random and unannounced, and the cooperation of every employee is required and appreciated.

C. Workplace Violence

Haventech is committed to taking appropriate measures to provide its employees with a work environment that is free of violence. Threats, threatening behavior, intimidation and acts of violence against employees, applicants, customers, office occupants, guests, or other individuals or the possession of firearms, weapons or other dangerous or hazardous devices or substances by anyone on Company property will not be tolerated. This includes behavior that is reasonably perceived by others to be threatening, intimidating or violent, regardless of intent. Such behavior can include oral or written statements, or gestures or expressions that communicate a direct or indirect threat of physical or mental harm. Any actual or implied threat will be treated as a real and serious danger and will be investigated. Employees are also expected to refrain from "horseplay" or other conduct that may be dangerous to others.

Weapons including, but not limited to, guns, knives, explosives, and other items with the potential to inflict harm are prohibited. Appropriate disciplinary action, up to and including termination, will be taken against any employee who violates this policy.

Individuals who possess a valid concealed carry license shall be permitted to carry a concealed firearm on or about himself or herself within a personal vehicle onto the Company's parking lot and may store the firearm and/or ammunition concealed in a case (including a glove compartment) within a locked vehicle or locked container out of plain view within the vehicle. To the extent an applicable State or local law forbids employers from regulating possession of a weapon in certain locations, this policy will not apply.

Any person who makes threats, exhibits threatening behavior, or engages in violent or dangerous acts on Company property may be removed from the premises and required to remain off Company premises pending the outcome of an investigation. If the Company determines the conduct violates this or any other policy, it will initiate an appropriate response, which may include, but is not limited to, suspension or termination of employment, suspension and/or termination of any business relationship, reassignment of job duties, and/or referral to the police for criminal prosecution of the person or persons involved.

No existing Company policy, practice or procedure should be interpreted to prohibit decisions designed to prevent a threat from being carried out, a violent act from occurring or a life-threatening situation from developing.

All employees are responsible for maintaining a safe work environment. Employees should notify either the Human Resources Department or Chief Operations Officer of any threats, threatening behavior, violent acts, or erratic behavior they witness, receive, or are told that another person has witnessed or received. Even without an actual threat, employees should report any behavior they have witnessed which they regard as threatening, intimidating, violent or erratic. Employees should make such reports regardless of the relationship between the individual who initiated the threat or threatening behavior and the person or persons who were threatened or were the focus of the threatening behavior.

The Company understands the sensitivity of the information requested and all information will be treated as confidentially as is feasible. No one will be subject to retaliation for bringing good faith concerns to the Company's attention or for assisting in any investigation.

V. OPERATING POLICIES

A. Performance Reviews

The Company believes it is important to let employees know how they are doing on a regular basis. Performance reviews may be conducted on an annual basis or as considered necessary in the Company's sole discretion. Some of the factors considered in evaluating performance include job knowledge, productivity, quality and quantity of work, cooperation with supervisors and co-workers, dependability, adaptability, leadership and initiative, willingness to accept responsibility, attendance, teamwork and timeliness. Individual merit increases or promotions may be provided based upon the results of the performance reviews. The amount of the merit increase, if any, is determined in the sole discretion of the Company consistent with business conditions and other considerations.

B. Payroll Procedures

1. Paycheck Distribution

Paychecks are typically distributed on a semi-monthly basis on the 15th and last day of each month. If payday falls on a Saturday or Sunday, pay will be distributed on the preceding Friday.

Haventech offers employees the convenience of having their pay deposited directly into a bank of their choice. Employees may opt for direct deposit by entering their direct deposit details directly into their payroll platform when onboarding and can change the details as necessary within the platform. Entries and changes are verified with the employee and approved before use., as well as written authorization for direct deposit.

2. Payroll Deductions

Haventech makes all payroll deductions required by law, including deductions for FICA (Social Security), and state and federal income tax. Other non-mandatory deductions for items such as health insurance are made only with an employee's written authorization.

3. Overtime

On occasion, it may be necessary to schedule non-exempt employees to work overtime. Normally, overtime work is assigned on a voluntary basis. On some occasions, however, employees may be required to perform overtime work on a mandatory basis. The Company will attempt to advise employees as far in advance as possible in the event overtime work will be necessary.

All overtime work must be authorized in writing and in advance by the employee's supervisor. All non-exempt employees will receive overtime pay at the rate of one and one-half times their regular rate of pay for all hours worked in excess of forty (40) hours in any workweek.

4. Separation and Return of Property

All employees of the Company are considered to be employed "at will" unless there is a written contract to the contrary. That means that the Company or the employee may terminate the employment relationship at any time, for any non-discriminatory reason or no reason and with or without notice or cause. The Company asks that, if possible, employees submit their resignation in writing to their supervisor at least two (2) weeks in advance. When appropriate, an exit interview may be conducted.

Immediately upon request, but in no event later than the separation date, employees must return to the Company all property of the Company, including, but not limited to, all tangible and electronically stored information containing or relating to the Company's confidential information (including any materials containing trade secrets) in their possession, custody or control, including, without limitation, any and all office and other keys, access badges. Computers, credit cards, equipment, and Company documents and copies thereof, including this Handbook.

C. Electronic Communications and Confidential Access to Proprietary Information

Haventech provides voicemail, e-mail and instant messaging systems, computer systems, fax machines, and other electronic communication systems (including servers and networks and the data and information contained on them) to assure timely and efficient internal and external business-related communications. These electronic communication devices, materials and services are very useful and greatly enhance productivity. However, steps must be taken to ensure that accuracy, security and control of the Company's and its customers' confidential and proprietary business information is maintained and that all communications using Haventech's electronic communication systems are appropriate. Haventech reserves the right to record, save and/or review all communications, including, but not limited to, voicemail, e-mail and instant messaging, made using its systems and/or equipment to the fullest extent allowed by applicable law.

The purpose of the following policy is to ensure effective, secure, ethical, and efficient business communications in both internal and external uses of its electronic communications systems, such as voicemail and e-mail, including the use of the Internet to transmit and receive external e-mail, and the use of data/programs stored on the Company's electronic communication systems and on magnetic tape, floppy disk, CD ROM or other storage media that is owned and maintained by the Company.

All systems are owned by the Company and are provided for business use. Use for personal purposes is generally not permissible, except that employees may occasionally use Company systems to send and receive personal email messages during non-working time as long as they do not violate any policy or practice of Haventech or interfere with Haventech's business or any authorized user's work. While limited and occasional personal use of the email system is allowed, use of email or any other Haventech electronic communications system for personal gain, job searching, sending chain letters, or soliciting money for personal, commercial or political causes, also is prohibited. Employees may not use these systems to receive, transmit or store any software programs that are not related and approved by Haventech. All messages and other information communicated through these systems are the property of Haventech. They are not the private property of employees. Employees must protect against intentional or inadvertent disclosure of the Company's confidential and proprietary business information at all times. Unauthorized use of Haventech's computer systems may be a violation of federal, state or local law and constitute grounds for either civil or criminal prosecution, as well as disciplinary action, up to and including termination.

Haventech and TJM reserves the right to access and disclose data stored on its various networks, including stored e-mail and voicemail messages, and to monitor usage of the systems, regardless of whether the messages are business-related or personal, where there is a legitimate business reason to do so and in compliance with applicable law. **EMPLOYEES SHOULD HAVE NO EXPECTATION OF PRIVACY IN CONNECTION WITH THE COMMUNICATION, TRANSMISSION, RECEIPT, OR STORAGE OF INFORMATION THROUGH ANY OF THE COMPANY'S ELECTRONIC COMMUNICATION EQUIPMENT OR SYSTEMS.** The confidentiality of any message or other information sent or

received should not be assumed. Even when a message is erased, it is still possible to retrieve and read that message. In addition, the use of passwords does not guarantee confidentiality. Notwithstanding the Company's right to retrieve and read any e-mail or Internet messages or material, such messages or material should be treated as confidential and accessed only by the intended recipient.

In accordance with this policy, employees should adhere to the following requirements in their use of the Company's electronic communication equipment and systems:

1. Employees are responsible for protecting any information used and/or stored on/in the Company's electronic communication systems.
2. Employees may not download, install or run security programs or utilities which identify or otherwise disclose weaknesses to unauthorized points of entry in the Company's electronic communication systems. Employees may not, for example, run password cracking programs on the Company computing systems.
3. Employees may not degrade the performance of systems, deprive an employee or user authorized by the Company of access to any electronic communication system, obtain extra resources beyond those allocated, circumvent electronic communication system security measures, or gain access to any electronic communication system on an unauthorized basis.
4. Employees may not attempt to access any electronic communications system for which they do not have authorization, unless they obtain the prior written consent of the Chief Operations Officer.
5. Employees may not download, install or run unauthorized programs or utilities unless they have been given authorization from in addition, no inside or outside party is authorized to install or delete any program on the Company's electronic communication systems without the consent of the Chief Operations Officer.
6. Employees may not share their Company account(s) with anyone, either through sharing a password to the electronic communication system, providing access via a host entry or any other means. Employees, however, are required to disclose any and all passwords to Haventech's electronic communication systems to the Chief Operations Officer or the Chief Information Officer.
7. Employees are strictly prohibited from using Haventech's electronic communication systems in violation of copyright, trade secret rights or other rights of Haventech or third parties or otherwise in violation of applicable laws, rules, regulations or ethical constraints. Copyright violations are an increasing concern as it becomes easier to make and distribute electronic copies of materials protected by copyright. Distributing an article electronically is the same as copying it using a copy machine. If any authorized user is unsure as to the copyright status of a document, it should not be copied until clarification is received. Employees should

always be aware of the copyright status of messages they send and receive and should look for copyright notices on any document or program received. Do not ignore these notices. Furthermore, even if there is no copyright notice, the materials may still be protected by copyright. Innocent violations are still violations.

8. Employees may not place offensive, threatening, or harassing statements or content on Haventech's systems, including all forms of discrimination and/or harassment based on legally protected status such as age, race, sex, religion, sexual orientation, national origin and disability. In addition, violent, threatening, intimidating, obscene, and defamatory communications are prohibited, as are any communications that violate any of the Company's policies regarding confidentiality. All communications using Haventech's systems must be professional and conform to the highest ethical and moral business standards.
9. Employees should be aware that security issues are especially relevant in using Haventech's systems to communicate confidential and proprietary business information belonging to the Company and its customers, suppliers and vendors, with those outside Haventech. The Internet is not a secure system. Therefore, extreme care should be taken in determining whether to transmit such information or documents over the Internet and to prevent computer viruses and unlawful or prohibited materials from being brought into the Company's network from the Internet.
10. Employees should recognize that electronic communications such as voicemail and e-mail may be as permanent as hard-copy communications. Once a message leaves, there is no way to control the number of copies made. Many e-mail systems automatically save extra copies, and these extra copies may be easily searched. Therefore, no messages should be sent except those which could comfortably be put in a letter or memo for general distribution, and employees should send messages containing confidential information only to people who are authorized to receive it and then only on a need-to-know basis.

Employees must immediately report any weaknesses in the Company's electronic communication systems, any incidents of possible misuse, or any violation of this policy to Haventech's Operations Officer or by sending e-mail to john@tjmbrokerage.com. Haventech and TJM Holdings reserves the right to terminate access to any of the systems either, temporarily or permanently, and to take other appropriate action including discipline up to and including termination and civil or criminal prosecution, in the event an employee violates any provision of this policy.

D. Dress Code

During business hours or when representing Haventech's interests, employees are expected to practice good hygiene and present a clean, neat and tasteful appearance. Employees should dress and groom themselves according to the requirements of their position and accepted business standards. It is the responsibility of each individual to ensure that his or her personal appearance

is in good taste and is appropriate in a business setting. This is particularly true if the job involves meeting clients or visitors.

Haventech has adopted an optional business casual dress standard for the office, and the following guidelines are applicable to all employees.

1. Everyone is expected to wear appropriate attire to meet their job responsibilities every day.
2. Employees with job duties that require access to exchange floors must adhere to the applicable exchange dress code.
3. Shorts, sweat pants, jogging suits, baggy t-shirts, tight stretch pants (including Capri stretch pants), halter-type tops, T-shirts with and without logos or pictures imprinted on them, and any type of clothing that is overly revealing is prohibited.
4. Denim slacks and jeans are permissible provided they are neat and clean.
5. Footwear should be professional, and sneakers, athletic shoes and beach-type sandals and flip-flops are prohibited.
6. Tattoos and body piercings (except for pierced ears) should be covered by clothing or removed while at work.

Clothing and grooming styles dictated by religion or ethnicity are exempt. In Illinois, Colorado, and other states and localities that have passed the CROWN Act, hair texture and protective hairstyles are statutorily protected as being race-based.

Employees generally are given a warning the first time they violate this dress policy. If an employee violates the dress policy a second time, he or she may be sent home immediately to change. Time away from the office will be unpaid for non-exempt employees. Subsequent violations may lead to further disciplinary action up to and including termination. Such violations may have a negative impact on the employee's performance review.

E. Substance Abuse

The Company is committed to providing a safe workplace and a work environment free from the often-devastating effects of alcohol and controlled substance abuse. Consequently, the following conduct is strictly prohibited and will result in immediate disciplinary action up to and including discharge:

1. Reporting to work, entering Company premises and/or otherwise representing the Company's interests under the influence of alcohol or controlled substances; and
2. Using, possessing, selling, manufacturing, purchasing or transferring alcohol or controlled substances on Company property (including conference rooms, offices,

desks, and bathrooms and in personal items carried on and off Company property), while conducting Company business or during working hours.

Management may require employees to be tested for the presence of alcohol and/or controlled substances, including marijuana, when it appears that work performance and/or on-the-job behavior is being affected or when an employee is involved in a workplace accident involving injury or damage to property.

This policy does not apply to employees who are taking medications as prescribed by a doctor. Any employee taking medications that adversely affect job performance and/or safety, however, should advise the Human Resources Department so that reasonable precautions can be taken and accommodations can be provided, if necessary. This exception does not apply to medically-prescribed marijuana.

It is not a violation of this policy for an employee to consume a moderate amount of alcohol served during Company-sponsored events or other authorized gatherings to develop Company-client relations, provided that the employee is authorized to attend such events.

The Company reserves the right to inspect and/or search all Company property, including but not limited to desks, files, file cabinets and work benches, at any time including on a random and unannounced basis. The Company also reserves the same right to inspect any personal item brought onto its premises, including but not limited to briefcases, backpacks, handbags, packages, shopping bags or lunch boxes. All employees are expected to cooperate fully in any inspections.

Refusing to submit to an inspection or a controlled substance or alcohol test as required by the Company, testing positive for controlled substances or alcohol, and other violations of this policy are considered serious offenses which may subject employees to disciplinary action up to and including discharge.

Employees are encouraged to seek voluntary treatment for alcohol and substance abuse. Any employee in need of assistance or referral information may contact the Human Resources Department. All such inquiries will be treated as confidential. Participating in a treatment program, however, will not excuse or limit an employee's obligations to meet performance standards established for all employees or to comply with any Company policy.

Haventech trusts all employees will work together to make the Company a safe place to work and to eliminate controlled substance and alcohol abuse in the workplace.

F. Code of Conduct

Every organization needs to adopt reasonable rules and regulations to ensure the safety, health and well-being of everyone. The Company's rules and regulations are based on common sense and are intended to provide employees with general guidelines governing their conduct in the workplace. The Company has not attempted to provide an all-inclusive list of rigid rules. No list can ever include all forms of conduct that may result in discipline, and rules do not replace the sound judgment, common courtesy and good taste that everyone should observe.

Employees are subject to disciplinary action, up to and including termination, without prior notice or warning, even for the first offense, for failing to observe any of the policies set forth in this handbook, and for failing to observe any guidelines or rules set forth by the Company. The type of disciplinary action the Company issues for a given infraction may depend upon the circumstances and factors such as the nature and severity of the infraction, prior misconduct, length of service, past performance, and the overall interest of the Company.

In general, any act that harms Haventech or its employees or which interferes with the Company's operations or the provision of services to its clients is prohibited and will result in discipline, up to and including termination. Examples of the types of conduct that may lead to such discipline are as follows:

1. Theft or destruction of Company property or the property of other employees.
2. Abusing, threatening or intimidating other employees, brokers, or clients.
3. Use of obscene, offensive, disruptive or abusive language on Company premises, while using Company electronic communications systems, while conducting Company business, during work hours, or while on Company premises.
4. Horseplay, rowdy behavior or fighting on Company premises, while conducting Company business, or during work hours.
5. Insubordination or refusal to perform assigned duties.
6. Negligent performance of duties.
7. Violation of Haventech's anti-harassment policy, substance abuse policy, its policy regarding the use of material, non-public information or any other Haventech policy.
8. Violation of any rule or policy contained in Haventech's Compliance Manual ("Written Supervisory Procedures").
9. The use or possession of weapons or other dangerous instruments, devices or substances while on Company premises, while conducting Company business or during working hours.
10. Excessive tardiness or absence, or failure to report absence or a late arrival in a timely matter.
11. Falsification of records, (such as time cards, personnel records, other employment records, purchase orders, and receiving reports).
12. Defrauding or attempting to defraud the Company or a client by any means, dishonesty, lying or embezzlement.

13. Violation of confidentiality requirements and procedures.
14. Excessive use of company or personal e-mail, instant messaging, or the Internet for personal purposes during working hours.

The above list does not include all types of conduct for which discipline may be expected. This list and common sense and good judgment, however, should be used as a guide in determining appropriate conduct.

G. Attendance Standards

Regular attendance and punctuality are expected of all employees as it is critical to Haventech's business that all employees perform their jobs every day the exchange markets are open. If an employee is running late or cannot report to their shift, they are expected to notify their immediate supervisor as soon as reasonably possible for work allocation and staffing purposes. Employees who come to work late or not at all put a burden on everyone who does and prevent everyone from being able to effectively do their jobs and serve Haventech's clients.

The Company recognizes the fact that on occasion it may be difficult or impossible to come to work on time or at all. While the Company takes into account the occasional difficulties employees may encounter in coming to work, at the same time, Company policy requires that all employees report to work regularly and on time. Employees who are excessively absent or tardy will be subject to disciplinary action, up to and including termination.

H. Call-In Requirement

Employees who are going to be tardy or absent must notify their supervisor at least two hours prior to the beginning of their scheduled starting time, but in no case later than their starting time. Employees who do not report tardiness or absence on a timely basis are subject to discipline, up to and including termination. Absences covered by the Family and Medical Leave Act, VESSA, or other applicable law are not included when determining excessive absenteeism or tardiness, except when employees fail to adhere to the notice requirements under such applicable laws.

Any employee who does not call-in and does not report to work for three consecutive days will be considered as having voluntarily resigned from his/her job.

I. Open Door Policy

On occasion, employees may have questions, problems or suggestions regarding how something may be done better, faster or more economically. The Company encourages employees to present and discuss such questions, problems or suggestions with their supervisor or, if it is necessary to discuss some matter further, with Human Resources.

J. Confidentiality

The protection of the Company's confidential and proprietary business information and trade secrets is vital to the interests and the success of the Company. Such confidential information

includes but is not limited to information that is not generally known in the public or in the industry that is valuable to Haventech based on its confidentiality, which may include the following:

1. Client information
2. Financial information
3. Pending business plans, projects and proposals
4. Unpublished marketing materials, products, designs and ideas

The materials, products, designs, plans, trade secrets, ideas, patent data and information and other confidential business information of the Company are its property. Such information must never be given or disclosed at any time during employment or thereafter to any outside organization or individual except pursuant to the proper performance of an employee's job duties and with appropriate prior authorization from Company management.

Employees' confidentiality obligations also include, but are not limited to, the following requirements:

1. Maintaining all confidential documents (whether paper, electronic or otherwise) in a secure manner;
2. Marking any documents or other materials that are not for distribution outside the Company (e.g., research notes and restricted lists) "For Internal Use Only;"
3. Not discussing confidential and proprietary Company business or information in elevators, cabs or other public places;
4. Using extreme care when transmitting confidential information via email or other electronic means, and complying with the related policies and procedures of the Company's Compliance Manual ("Written Supervisory Procedures") where applicable;
5. Adhering to the Company's rules regarding the proper use of any material containing confidential information;
6. Not improperly using or inappropriately disclosing to the Company any confidential information or trade secrets of any former employer or other person or entity to whom an employee has an obligation of confidentiality; and
7. Not bringing onto any premises of the Company any documents or other property belonging to any person or entity to whom or to which an employee has an obligation of confidentiality, unless consented to in writing by such person or entity.

Any employee who misappropriates or improperly transfers or discloses the Company's proprietary and confidential business information, uses the Company's confidential information

for personal gain or otherwise violates this policy will be subject to disciplinary action, up to and including discharge, and potential civil or criminal prosecution under applicable laws. Misuse of any “inside” information may further subject an employee to certain administrative actions by the U.S. Securities and Exchange Commission and discipline by various securities industry self-regulatory organizations. Employees should contact the Compliance Department if they have any questions about whether any information constitutes “inside” information.

K. Conflict of Interest

Haventech’s reputation for integrity, ethical dealing, and fairness is a critical element in its success and a significant part of its core values. Haventech expects employees to avoid situations that would give rise to an actual or potential conflict of interest between themselves and Haventech. It also requires employees to avoid situations that might create the perception or appearance of such a conflict. Conflicts of interest exist where the employee’s loyalty or actions are divided between the Company’s interest and those of another, such as a competitor, consultant, vendor or customer. By exercising good judgment and high ethical standards, employees can avoid situations that create an actual, potential, or perceived conflict between the employee’s personal interests and the interests of the Company. In order for Haventech to evaluate actual, potential, or perceived conflicts, all employees are required to provide a detailed written report to the Compliance Department as to the nature and extent of any outside business activity from which they will receive compensation. Any questions about the parameters of this policy should be directed to the Compliance Department. These reports must be made prior to the employee engaging in any outside business activity.

Employees’ conflict of interest obligations also include, but are not limited to, the following requirements:

1. No employee may give or accept any gifts or gratuities to/from Company customers or vendors that exceed \$100, unless he/she receives prior approval from the Compliance Department.
2. While the Company encourages employees to maintain their personal securities accounts with the Company, any such accounts maintained at other broker-dealers must be reported to the Compliance Department.
3. No employee may have a joint account with a Company customer unless prior written authorization is received from both the customer and the Company and further, profits and losses are shared in direct proportion to the financial contributions made. Certain types of accounts are exempt from this no-sharing rule (including certain “immediate family” accounts and additional information about this rule is available from the Compliance Department).

Any questions about the parameters of this policy should be directed to the Compliance Department.

L. Background Investigations

Prior to making any offer of employment, the Company performs a background investigation of the new hire candidate. Applicants who require a background screening have to complete a questionnaire from our screener and their electronic consent is required. Applicants who require reference checks must provide via email the name and phone number of three references. Some applicants require both checks depending on the scope of the position they are applying for.

The purpose of this investigation is to verify the good character, business reputation, qualifications, and experience of the candidate. Information is not obtained about any expunged juvenile records or arrests, and potential employees are cautioned not to disclose such information. Adverse information that may be disclosed as part of the background investigation may lead to the Company declining to offer employment, subject to applicable state and federal laws.

M. Social Media Usage

While employed at the Company, employees who promote Haventech through the creation, publication, or sharing of content using social media websites in the form of blog posts, comments on blog posts, participation in discussions on online forums, biographical information in an online user profile, a “user generated” video or still image, or other content are responsible for all content posted to a social media website. All promotional material of a marketing nature relating to Haventech must be approved by a senior Haventech manager in advance. If an employee is not sure whether their intended post will fall within the terms of this policy, they must err on the side of caution and seek approval by a senior Haventech manager.

All posts must comply with the laws regarding, copyrights, defamation, trademarks and rights of privacy. Employees may not publish confidential or proprietary business information belonging to the Company or its clients, members, vendors, and suppliers and Company property containing such confidential information, such as non-public drawings, designs, software, ideas and innovations. Use of Haventech electronic systems to promote illegal activity, or which constitute obscenity, profanity, or harassment or disparagement of any sex, race, religion, gender, sexual orientation, disability or national origin, is strictly prohibited. This policy does not apply to personal communications between employees regarding the terms and conditions of their employment, as permitted by applicable law.

This policy is intended to ensure that employees adhere to their ethical and legal obligations when using the internet in connection with their employment activities on behalf of Haventech. The intent of this Policy is not to restrict the flow of useful and appropriate information, but to minimize risk to the Company and its employees.

Social media covered by this policy include blogs, message boards, chat rooms, online forums, social networks, professional network sites, and video sites. This is a rapidly changing area, and new tools and technologies are being introduced on a daily basis. Employees should be aware that the standards described in this policy apply to any new tools and technologies, regardless of whether they are specifically named.

N. Secondary Employment

Non-licensed employees may work a second job if it does not interfere with the performance of their duties, which includes availability for overtime when necessary and where applicable. The outside position must in no way compete or conflict with your interest and loyalties to the Company or its subsidiaries. An Employee may not work for or collaborate in any way outside of employment with TJM Holdings', TJM Institutional Services, TJM Investments, or Haventech's clients, other employees, brokers, management, or vendors. Some licensed employees will need to obtain written approval for outside business activities. Prior to seeking secondary employment, please refer to the Written Supervisory Procedures for additional information on when written approval is necessary and how to request such approval.

A prospective employee must disclose at the time an offer of employment is made any restrictions upon their availability to work for the Company due to another job.

If an employee obtains a second job while working for the company, the employee's supervisor and Human Resources should be made aware, if it could interfere with their duties at the Company.

VII. SIGNATURE AND ACKNOWLEDGMENT

The following is a statement which acknowledges that you have received a copy of the “Haventech” Employee Handbook and Haventech’s Compliance Manual and that you agree to abide by the policies and procedures described in each as may be in effect and revised from time to time. You should refer to the Handbook and Compliance Manual whenever you have a question and review them on a regular basis to become familiar with periodic changes that may occur.

* * * * *

I acknowledge receiving a copy of the Haventech Employee Handbook and Compliance Manual and agree to abide by each. I understand and acknowledge that neither this Employee Handbook nor Compliance Manual, nor any other employee communication that may be circulated from time to time, constitutes a contract of employment. I further understand and acknowledge that unless there is a written employment contract between me (or any other authorized representative) and Haventech and signed by Haventech’s or TJM’s Operations Officer to the contrary, neither I nor Haventech is bound to an employment contract or a commitment of employment for a definite period of time, and either party has the right to terminate the employment relationship at any time with or without notice, reason or cause.

Signature

Date

Print Name

**PLEASE SIGN AND RETURN THIS PAGE TO THE HUMAN RESOURCES
DEPARTMENT**